Revision Date:
04/01/2026

Background:
Participation in CalFresh is limited to United States (U.S.) Citizens and qualified Non Citizens.

Purpose:
This section describes the citizenship requirements for the CalFresh program. The section is being updated to include new Non Citizen requirements due to House of Representatives 1, An Act to Provide Reconciliation Pursuant to Title II of H. Con. Res. 14 (H.R. 1), signed into Federal law on July 4, 2025.

Policy:
The following individuals are eligible for CalFresh:
- U.S. Citizens.
- Qualified Non Citizens:
  - Non Citizen U.S. Nationals.
  - Lawful Permanent Residents (LPRs).
  - Individuals who reside in the U.S. in accordance with a Compact of Free Association (COFA) agreement.
  - Cuban and Haitian Entrants (CHEs).

1. U.S. Citizenship

To be considered a U.S. Citizen, an individual must meet one of the following:
- Have been born in:
  - One of the 50 states.
  - The District of Columbia.
  - Puerto Rico.
  - Guam.
  - The U.S. Virgin Islands.
  - The Northern Mariana Islands on November 4, 1986, or later.
- Be a Naturalized U.S. Citizen.
- Have acquired U.S. citizenship (children born abroad to a U.S. Citizen parent).
- Have derived citizenship through the naturalization of their parents prior to their 18th birthday.

2. Verification of Citizenship

Unless questionable, an individual's statement is sufficient verification of U.S. citizenship. U.S. citizenship is considered questionable when the claim of citizenship is:
- Inconsistent with statements made by the individual or with other information on current or previous applications.
- Inconsistent with information received by another source.

Refer to Section 63-117 for acceptable verification of citizenship.

3. Five Year Waiting Period

Certain LPRs are subject to a five-year waiting period before becoming eligible for CalFresh, unless they are exempt or meet a Non Citizen condition. Refer to Section 63-154 Non Citizen Status for

information on the Non Citizen conditions. Qualified Non Citizens who are not eligible for CalFresh benefits, solely based on their immigration status, may be eligible for the California Food Assistance Program (CFAP) if they meet all other eligibility requirements.

References:
Manual of Policies and Procedures (MPP) 63-405
Code of Federal Regulations (CFR) 273.4(a)
All County Letter (ACL) 25-92

Sunset Date:
This policy will be reviewed for continuance on or by 03/31/2029.

Approval for Release:



Alberto Banuelos. Ph.D., Interim Director
Self-Sufficiency Services